

Oregon House passes e-bike bill after Bend teen's death



By **Julia Shumway** (Oregon Capital Chronicle)

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The Oregon House unanimously passed a bill updating laws around electric bicycles on Tuesday in what the bill's author described as the first of many steps to honor a Bend teen killed while riding his bike and make streets safer throughout the state.

[House Bill 4103](#), introduced by Rep. Emerson Levy, D-Bend, would update a 27-year-old law to create three new classes of electric bikes based on the type of motor and how fast they can go. It's a scaled-back version of what she originally proposed as Trenton's Law, named for 15-year-old Trenton Burger.

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Rep. Emerson Levy, D-Bend, speaks during a House Housing and Homelessness Committee meeting on Sept. 28, 2023.

Julia Shumway / Oregon Capital Chronicle

The teen was riding an e-bike on a sidewalk along Highway 20 in Bend last June when a van turned right, striking and killing him. His parents urged Levy and local elected officials to help protect other children.

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“One of the most important things we do on this floor is bear witness,” Levy said as the House prepared to vote on the measure on Tuesday. “We bear witness to our constituent lives, and it’s a reminder that we do sacred things on this floor.”

The bill, which now heads to the Senate, creates three classifications of electric bicycles. Class 1 e-bikes only provide assistance when a rider is actively pedaling and stops its motor when the bike reaches 20 mph. Class 2 e-bikes can be propelled without pedaling and top out at 20 mph. And Class 3 e-bikes require pedaling, come with a speedometer and top out at 28 mph.

Levy initially proposed allowing anyone, regardless of age, to use a Class 1 electric bicycle and making it a traffic violation for a child younger than 16 to use a Class 2 or Class 3 e-bike. But as passed by the House, the bill would ban e-bikes for anyone younger than 16 who doesn't have a driver's license or permit. Anyone 16 or older can use any e-bike.

The bill is paired with a second proposal, [House Bill 4067](#), which would create a task force to recommend laws on electric bikes, scooters and mopeds by Dec. 31, 2024. That bill carries a \$200,000 price tag and is waiting to be considered by the budget-writing Joint Ways and Means Committee.

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Correction: The original version of this story misrepresented House Bill 4103 as a law in the headline. Oregon Capital Chronicle and OPB regret the error.

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